



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 31 October 2017 and 17 judgments and / or decisions on Thursday 2 November 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 31 October 2017

Kamenos v. Cyprus (application no. 147/07)

The applicant, Costas Kamenos, is a Cypriot national who was born in 1949. He is a lawyer and lives in Nicosia. The case concerns disciplinary proceedings brought against him following his appointment as judge and then President of the Industrial Disputes Court ("the IDC").

In 2005 the Supreme Court received a complaint alleging misconduct on the part of Mr Kamenos in the exercise of his judicial functions. Mr Kamenos was thus served with a written notice of the allegations and asked to submit comments. Following this, the Supreme Court appointed an investigating judge to look into the allegations. This judge submitted a report to the Supreme Court, together with statements he had collected from witnesses and Mr Kamenos. The Supreme Court then framed charges of misconduct against Mr Kamenos and called him to appear before the Supreme Council of Judicature ("the SCJ"), which has exclusive competence for the dismissal of judges and disciplinary matters.

Disciplinary proceedings were carried out before the SCJ, with a number of hearings taking place at which witnesses listed on the charge sheet against Mr Kamenos were heard and cross-examined by his lawyer. Mr Kamenos then set out his defence case, testifying himself and calling 36 witnesses. During these proceedings, he submitted that the Supreme Court and the SCJ had the same composition, meaning that the same judges had examined the witness statements against him, had decided to refer the case to trial, had formulated the charges against him and, acting as prosecutors, had tried the case. He argued that this was contrary to the right to a fair trial. He also raised certain preliminary objections against the charge sheet which were dismissed. In September the SCJ ultimately found that the charges had been proved and removed Mr Kamenos from office. It dismissed his objection about the fairness of the proceedings, finding that it had done its best to avoid a procedure which was prosecutory: in particular it had not assigned the duties of prosecutor to the investigating judge or put questions to the witnesses. The SCJ's decision was final.

Relying on Article 6 §§ 1 and 2 (right to a fair trial / hearing) of the European Convention on Human Rights, Mr Kamenos alleges that the disciplinary proceedings against him were unfair. Firstly, he complains that he had been charged, tried and convicted by the same judges, in breach of the principle of impartiality. Secondly, he alleges that the SCJ had admitted evidence, namely records of IDC proceedings over which he had presided, which had not been part of the material put together by the investigating judge and which had not been brought to his attention before the trial.

M.F. v. Hungary (no. 45855/12)

The applicant, Mr M.F., is a Hungarian national who was born in 1990 and lives in Gyöngyöspata (Hungary). He is of Roma origin. The case concerns his allegation of police brutality.

In the early hours of the morning on 12 August 2010 Mr M.F. was apprehended while driving a car containing apparently stolen goods and taken to the local police station for questioning. He alleges that for the next four hours, until after 6 a.m., six police officers and two security guards all took part in ill-treating him in order to extract his confession to further offences. He alleges in particular that he was repeatedly hit and kicked and that the soles of his feet had been hit many times with a piece of wood. He also claims that one of the officers had told him that it would not matter if he died as that would mean one less Gypsy. He eventually signed a record, stating that he had been questioned for about 40 minutes and admitting three counts of theft, and was released.

The same evening Mr M.F. was examined by his local doctor at home and then at two hospitals. The local doctor did not make any medical record of her visit, but recommended that he go to hospital to have his injuries recorded. Both hospitals issued reports certifying that Mr M.F. had numerous injuries, including bruising, abrasions, contusions and swollen hands, arms and feet.

In September 2010 Mr M.F. lodged a criminal complaint alleging that he had been the victim of police brutality and that he had been repeatedly insulted on account of his Roma origin. The prosecuting authorities discontinued the investigation in December 2010, finding that his version of events was not plausible as most of the accused either had alibis or could not have been present during the 40-minute period of his questioning. His allegation of a racist motive being behind his ill-treatment was not addressed.

In 2012 Mr M.F. also brought a substitute private prosecution against the six police officers and two security guards. During these proceedings his mother, brother and a friend testified that he had had injuries when they had picked him up from the police station on the day of his release. The charges were however ultimately dropped against three of the defendants and the courts acquitted the other five due to lack of evidence.

Mr M.F. was subsequently found guilty of false accusation against one of the police officers and sentenced to 180 days' community work.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr M.F. complains about being ill-treated by the police and that the authorities failed to conduct an effective investigation into his allegations. Further relying on Article 14 (prohibition of discrimination) of the European Convention, he also alleges that he was ill-treated because he was a Roma and that the investigation did not cover at all whether the ill-treatment had been racially motivated.

[Bauras v. Lithuania \(no. 56795/13\)](#)

The applicant, Vytautas Bauras, is a Lithuanian national who was born in 1964 and lives in Vilnius. The case concerns his complaint that he had effectively been found guilty in a double-murder case in which he had been a witness, and that this prejudged ongoing criminal proceedings against him for instigating the same murders.

In 2007 Mr Bauras was officially suspected of having organised the murder of two individuals, including his business partner. In October 2009, Mr Bauras' former bodyguard, D.A., was officially suspected of having carried out the murders. He was also accused of having attempted to murder Mr Bauras in another separate incident. In the case against D.A., Mr Bauras was treated as a suspect for the first offence and granted victim status for the second.

In 2011 D.A. was found guilty of the murders. One of the pieces of evidence used to reach this conclusion was a letter addressed to Mr Bauras from D.A. This letter was given to the police by Mr Bauras. In it, D.A. explained that Mr Bauras had told him to kill his business partner, because he wanted the profit from the business. D.A. also wrote that Mr Bauras had bought him weapons and bribed judges and prosecutors so that D.A. wouldn't be prosecuted for the crimes he was carrying out for Mr Bauras. In court, D.A. claimed that the contents of the letter were false, but the court ruled that the contents of the letter were truthful. It found that the crime had been committed by

D.A. upon the orders of an “individual in respect of whom a separate pre-trial investigation was opened” (referring to Mr Bauras). Mr Bauras appealed against this judgment, arguing that the court had held him guilty of organising the murder even though he was not accused of it in that case and so hadn’t been given the opportunity to defend himself. His appeal was dismissed on the grounds that, being a witness, he did not have a procedural right to submit such an appeal.

In Mr Bauras’ own case, he was acquitted of all the charges against him on 9 October 2014 due to lack of evidence.

Relying in particular on Article 6 § 2 (presumption of innocence), Mr Bauras argues that in the criminal proceedings against D.A. the court concluded that he had directed the murder without giving him the opportunity to defend himself against the allegations as he had just been a witness in those proceedings. He further alleges that these conclusions influenced his own criminal trial.

Činga v. Lithuania (no. 69419/13)

The applicant, Ramūnas Činga, is a Lithuanian national who was born in 1963 and lives in Zujūnai (Lithuania). The case concerns his complaint about a court decision ordering him to return land to the State on which the utilities necessary for the functioning of his house had been installed.

Between 1988 and 1993 Mr Činga acquired a plot of land from the State in Zujūnai, in the region of Vilnius. He obtained a permit to build a house on the land and has been living there with his family since 2004. The authorities had notably allocated him two plots of land of 0.05 and 0.15 hectares respectively and these two plots were later sold to him. The utilities for the house, including waste water equipment, gas and water supplies as well as an electricity metre, are all installed on the plot of 0.05 hectares.

In 2006 and 2007 two sets of civil proceedings were brought against Mr Činga concerning the plot of 0.05 hectares. The first set of proceedings was brought by two neighbours claiming that the plot blocked their access to the street. The second was brought by the prosecutor’s office requesting that the courts annul the sale of the plot of 0.05 hectares, that the plot be returned to the State and that Mr Činga be awarded compensation. Both sets of proceedings found in favour of Mr Činga. The courts notably stated that he was a *bona fide* owner and that his neighbours could easily access their land using other roads.

However, the prosecutor’s office applied to reopen the civil proceedings; his request was refused, as well as a separate complaint by the Prosecutor General. Nevertheless, the latter submitted an appeal on points of law and ultimately, in January 2013, the domestic courts found against Mr Činga during its fresh examination of the case. They found that the decision to allocate him the 0.05 plot of land was in breach of domestic law and that there had been a clear mistake in the application of the law in the earlier decisions in his favour. They also held that Mr Činga should have known that the disputed part of the land would block the road as the Zujūnai settlement plans had shown that there was a continuing passage on it. Mr Činga was thus ordered to return the land to the State. He was paid 15 Lithuanian litai (approximately 4.34 euros), the nominal equivalent of the price he had paid for the plot in 1993.

Mr Činga continues to live in the house and has not apparently removed the utilities from the disputed plot of land. Most recently, he made a request to rent the plot of land from the authorities, which was rejected.

Relying in particular on Article 1 of Protocol No. 1 (protection of property), Mr Činga complains about having to return to the State the plot of land on which the utilities necessary for the functioning of his house had been installed, alleging that the sum awarded in compensation was inadequate. Also relying on Article 6 § 1 (right to a fair trial / hearing within a reasonable time), he complains about the excessive length of the proceedings in his case.

[Dragoş Ioan Rusu v. Romania \(no. 22767/08\)](#)

The applicant, Dragoş Ioan Rusu, is a Romanian national who was born in 1974 and lives in Bacău (Romania). The case concerns his conviction for trafficking Diazepam via his local post office.

In January 2005 a post office in Bacău informed the police about envelopes containing suspicious items. The police examined the envelopes and found that they contained Diazepam, a prohibited drug. The prosecuting authorities subsequently issued orders authorising the seizure of the envelopes under an urgent procedure provided for under domestic law, namely Article 98 § 1 of the Code of Criminal Procedure. The urgent order was sent to the Bacău County Court for information. A criminal investigation was then launched and a surveillance operation set up in the Bacău post offices. Mr Rusu was thus identified in March 2005 in two different post offices depositing suspect envelopes to be sent abroad. The envelopes were seized under the same urgent procedure provided for by Article 98 § 1 and the County Court informed. Two pharmacists also identified Mr Rusu as the person to whom they had sold the medicine without prescription. The prosecutor concluded that Mr Rusu had been trying to sell abroad medicine classified as drugs and committed him to trial for drug dealing.

During the ensuing proceedings against him Mr Rusu, a university researcher, denied any involvement in drug trafficking, arguing that he had been sending scientific papers and samples abroad in relation to his research work. Mr Rusu was however convicted by the Bacău County Court in February 2009 of drug trafficking and given a three-year suspended sentence. The County Court relied on the evidence in the file, namely: the seized envelopes, including the expert evaluation of their content and of the writing on the envelopes (found to be Mr Rusu's); transcripts of the audio and video-surveillance; statements by witnesses (notably pharmacists, doctors, post office workers and Mr Rusu's fellow researchers); results of checks on the recipients of the envelopes and on the money transfers received by Mr Rusu from abroad; and police reports about checks on the pharmacies used by Mr Rusu and on his alleged scientific work abroad via Internet. Mr Rusu's complaints about the unlawfulness of the interception of his correspondence were dismissed. The court notably found that the prosecutor had been allowed by law to intercept the envelopes without court authorisation, given that the situation had been urgent and provided that the courts had been informed afterwards (which they had). Mr Rusu's appeal on points of law was ultimately dismissed in June 2010.

Relying on Article 8 (right to respect for private and family life, the home, and the correspondence) Mr Rusu alleges that the interception of his correspondence was unlawful. He also alleges under Article 6 § 1 (right to a fair trial) that his conviction was unfair because it was based on unlawfully obtained evidence, namely envelopes seized by the prosecuting authorities at the post office without the approval of a court.

[Krajnc v. Slovenia \(no. 38775/14\)](#)

The applicant, Slavko Krajnc, is a Slovenian national who was born in 1952 and lives in Celje (Slovenia). He was a professional truck driver until he could no longer work due to epilepsy. The case concerns a reduction in his disability benefit.

In 2005 Mr Krajnc was granted a monthly allowance of 390 euros (EUR) while waiting to be reassigned to a suitable position of employment that would not put himself or others at risk on account of his epilepsy. He received this allowance for the next six years, until 2011, when he sustained a shoulder injury and the pension authorities reassessed his level of disability. Finding that his capacity to work had further reduced, the authorities granted him a disability allowance amounting to EUR 190 per month. Mr Krajnc appealed against this decision to the pension authorities, arguing that his benefit had been considerably reduced even though his disability had in fact worsened. The pension authorities rejected his appeal and he therefore lodged a claim with the labour courts. However, the courts dismissed his claim in 2012, finding that new legislation

introduced in 1999 applied in his case; in particular, the new legislation did not contain the right to a waiting period allowance, but provided for a disability allowance for those, like Mr Krajnc, whose disability had worsened after 1 January 2003. He appealed, pointing out that he was unable to survive on the newly determined allowance. The higher court confirmed the lower court's position, pointing out that his case concerned a change in the level of his disability, which had required a fresh determination of his disability benefit in accordance with the new legislation. In 2013 the Supreme Court dismissed his appeal on points of law and the Constitutional Court refused to accept his complaint.

Relying on Article 1 of Protocol No. 1 (protection of property), Mr Krajnc alleges that the reduction in his disability benefit was excessive.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Damjanović and Euromag d.o.o. v. Bosnia and Herzegovina (no. 17248/11)

Pascoi and Others v. Romania (nos. 8675/06, 60826/10, 27616/11, 67634/11, 74155/13, 1152/14, 10538/14, and 41786/14) – Revision

Tanasov v. Romania (no. 65910/09)

Thursday 2 November 2017

Mills v. Ireland (no. 50468/16)

The applicant, Robert Mills, is an Irish national, who was born in 1990 and lives in Dublin. The case concerns his complaint that his conviction for selling drugs was unfair as it was based on evidence obtained by police entrapment.

In June 2013 Mr Mills was arrested following a drugs test purchase exercise conducted in Dublin to identify individuals engaged in the sale and supply of illicit drugs. The exercise began on 28 March 2013, when two officers of the National Drug Unit, working undercover, randomly approached two young men and asked if there was "any weed around". One of the young men made a telephone call, and a few minutes later a car arrived in which Mr Mills was a passenger. He sold one of the officers a 25-euro sachet of cannabis. At the officer's request, Mr Mills gave him a mobile phone number for future contact. On the following day, the officer contacted him by telephone. Shortly afterwards they met and Mr Mills sold him another sachet of the drug. He advised the officer to buy a larger quantity the next time. The third and final purchase took place a few days later, following the same pattern and involving 50 euros' worth of the drug.

Following his arrest and questioning by the police, Mr Mills was charged under the Misuse of Drugs Act. His counsel applied to have the police evidence excluded on the ground that the applicant had been entrapped by the undercover officers. Following a legal argument on the admissibility of the evidence heard over two days in the absence of the jury (*voir dire*) during which the police witnesses were cross-examined the trial judge refused to exclude the evidence. Mr Mills then changed his plea to guilty and he was sentenced to two years' imprisonment on each count, suspended for two years.

The Court of Appeal dismissed his appeal in December 2015. It made extensive reference to the relevant case-law of the European Court of Human Rights and noted that Ireland was the only country in a comparative survey covering 22 Member States that lacked a formal regulatory basis for the use of undercover police. While it considered that situation to be unsatisfactory, the Court of Appeal nevertheless concluded that there had been no infringement of Article 6 of the European

Convention on Human Rights in the circumstances of the case and that the trial judge had been correct in deciding to admit the evidence. The Court of Appeal noted in particular that: the undercover officers who had participated in the exercise had been adequately trained and advised as to their conduct; the defendant had been provided with no more than an unexceptional opportunity to commit a crime and it appeared that he would have behaved in the same way if the same opportunity had been offered by anyone else; and he had not been incited, persuaded or pressured into committing a crime. The Supreme Court refused leave to appeal in June 2016.

Relying on Article 6 § 1 (right to a fair trial), Mr Mills complains that the refusal of the domestic courts to exclude the evidence against him arising out of the test purchase meant that he had not received a fair trial.

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Zečević v. Bosnia and Herzegovina (no. 34676/10)
Atanasova v. Bulgaria (no. 22280/12)
Chichua v. Georgia (no. 65150/14)
Ghvaladze v. Georgia (no. 42047/06)
Pax Pannoniae Kft v. Hungary (no. 77062/13)
Brennan v. Ireland (no. 44360/15)
Campion v. Ireland (no. 29276/17)
P.H. v. Ireland (no. 45046/16)
Jurgelaitis v. Lithuania (no. 9464/14)
Baştura v. Romania (no. 43529/15)
Bebiş and Boboc v. Romania (nos. 63196/09 and 63204/09)
Pibernik v. Slovenia (no. 59522/10)
Rožman v. Slovenia (no. 59542/14)
Szasz v. Slovenia (no. 53257/13)
Šinko and Milaković v. Slovenia (no. 48790/15)
Khadzhyradovy v. Ukraine (no. 18320/09)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.